

Pooran Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2014 · WRIT - C No. 16708 of 2014 · **Writ disposed of; relegated to s.287-A and Supply Code**

HEADNOTE

A writ challenging recovery of electricity dues as arrears of land revenue will not decide, on affidavits, a highly factual dispute as to bills or continuity of supply. Assessment and bill disputes lie under the U.P. Electricity Supply Code, 2005; a recovery citation under the U.P.Z.A. & L.R. Act is to be assailed in a suit under s.287-A, especially where the consumer has already sued for an injunction against the same dues.

FACTUAL SUMMARY

Pooran Lal challenged a recovery citation dated 22 August 2013 for Rs.10,706 as arrears of land revenue on domestic connection No. 404009. He said that after the 1998 connection no bills were served, wooden poles had fallen, and there was no supply. Madhyanchal Vidyut Vitran Nigam Ltd. pointed to his pending Civil Suit No. 395 of 2013 seeking an injunction against realisation of the same dues. Earlier Division Benches had stayed the recovery pending listing.

HOLDING-UNITS

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HOLDING

Where the controversy is as to assessment or the bills themselves, the remedy is under the Uttar Pradesh Electricity Supply Code, 2005; where it is as to a recovery citation issued under the U.P.Z.A. & L.R. Act, a suit under s.287-A of that Act is contemplated. The writ court will not, on affidavits, adjudicate a highly factual dispute as to the amount due or whether supply continued after 1998, particularly when the consumer has already filed a civil suit for injunction against realisation of the same dues. Relief against the citation is refused, with liberty to proceed under s.287-A. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS.10,706 WAS DUE AND WHETHER SUPPLY CONTINUED AFTER 1998

Treated as a highly factual dispute not to be decided on affidavits; liberty to pursue Supply Code / s.287-A. ¶ 1